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U.S. District Court - District of Colorado
District of Colorado (Denver)
CIVIL DOCKET FOR CASE #: 1:17-cv-00584-PAB-NYW

Seeley v. Home Depot U.S.A., Inc.
Assigned to: Judge Philip A. Brimmer
Referred to: Magistrate Judge Nina Y. zzz_Wang-MJ
Case in other court: District Court, Denver County, 2017CV30444
Cause: 28:1332 Diversity-Tort/Non-Motor Vehicle

Date Filed: 03/06/2017
Date Terminated: 10/22/2018
Jury Demand: Both
Nature of Suit: 360 P.I.: Other
Jurisdiction: Diversity

Plaintiff**Sean Seeley**

represented by **Bryan D. Doran**
Doran Law, PS
10313 Fairgate Way
Highlands Ranch, CO 80126
425-786-5725
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LEAD ATTORNEY
ATTORNEY TO BE NOTICED

William Babich
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V.

Defendant

Home Depot U.S.A., Inc.
a Delaware corporation

represented by **Arthur Kittredge Smith , III**
Arthur K. Smith, P.C., Law Offices of
507 Prestige Circle
Allen, TX 75002-3438
469-519-2500
Fax: 469-519-2555
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ATTORNEY TO BE NOTICED

Date Filed	#	Docket Text
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03/06/2017	1	NOTICE OF REMOVAL by Home Depot U.S.A., Inc. from District Court, Denver County, Case Number 2017CV30444. (Filing fee \$ 400, Receipt Number 1082-5408657), filed by Home Depot U.S.A., Inc.. (Attachments: # 1 Exhibit A, # 2 Exhibit B-1, # 3 Exhibit B-2, # 4 Exhibit B-3, # 5 Exhibit B-4, # 6 Exhibit B-5, # 7 Exhibit B-6, # 8 Exhibit C, # 9 Civil Cover Sheet)(Smith, Arthur) (Entered: 03/06/2017)
03/06/2017	2	CORPORATE DISCLOSURE STATEMENT identifying Corporate Parent The Home Depot, Inc. for Home Depot U.S.A., Inc.. (Smith, Arthur) (Entered: 03/06/2017)
03/06/2017	3	Case assigned to Judge Philip A. Brimmer and drawn to Magistrate Judge Nina Y. Wang. Text Only Entry (amenz,) (Entered: 03/06/2017)
03/06/2017	4	COMPLAINT against Home Depot U.S.A., Inc., filed by Sean Seeley.(amenz,) (Entered: 03/06/2017)
03/06/2017	5	AFFIDAVIT of Service of Complaint upon Defendant on 02/13/2017 (amenz,) (Entered: 03/06/2017)
03/06/2017	6	Magistrate Judge consent form issued pursuant to 28 U.S.C. 636(c). (amenz,) (Entered: 03/06/2017)
03/06/2017	7	FIRST AND FINAL NOTICE TO ATTORNEY(S) IN REMOVED, TRANSFERRED OR OTHER CASES: Pursuant to D.C.COLO.LCivR 11.1(a), an attorney must be a member of the U.S. District Court's bar to make an appearance and receive notice in any case before the court. The attorney records of the court reflect that the following counsel is a member of the U.S. District Courts Bar, but has not entered an appearance in this case: WILLIAM BABICH. In order to make an appearance in this case and receive any further notice regarding this case, counsel must file an entry of appearance in this case. Absent any Notice of Entry of Appearance filed, no further direct notices to counsel will be sent. Text only entry. (amenz,) (Entered: 03/06/2017)
03/07/2017	8	NOTICE of Entry of Appearance by William Babich on behalf of Sean SeeleyAttorney William Babich added to party Sean Seeley(pty:pla) (Babich, William) (Entered: 03/07/2017)
03/07/2017	9	<i>Original</i> ANSWER to 4 Complaint by Home Depot U.S.A., Inc..(Smith, Arthur) (Entered: 03/07/2017)
03/07/2017	10	ADVISORY NOTICE OF NONCOMPLIANCE WITH COURT RULES/PROCEDURES: re: 8 Notice of Entry of Appearance filed by attorney bryan Doran.The s/signature did not match the filers name on the account for which the login and password are registered. DO NOT REFILE THE DOCUMENT. Action to take - future documents must be filed pursuant to D.C.COLO.LCivR 5.1(a) and 4.3(c) of the Electronic Case Filing Procedures (Civil Cases). (Text Only Entry) (jhawk,) (Entered: 03/07/2017)
03/14/2017	11	ORDER REFERRING CASE to Magistrate Judge Nina Y. Wang for non-dispositive matters. Pursuant to 28 U.S.C. § 636(b)(1)(A) and (B) and Fed. R. Civ. P. 72(a) and (b), this case is referred to the assigned United States Magistrate Judge to (1) convene a scheduling conference under Fed. R. Civ. P. 16(b) and enter a scheduling order meeting the requirements of D.C.COLO.LCivR 16.2, (2) conduct such status conferences and issue such orders necessary for compliance with the scheduling order, including amendments or modifications of the scheduling order upon a showing of good cause, (3) hear and determine pretrial matters, including discovery and other non-dispositive motions, and (4) conduct a pretrial conference and enter a pretrial order. Court sponsored alternative dispute resolution is governed by D.C.COLO.LCivR 16.6. On the recommendation or informal request of the magistrate judge or on the request of the parties by motion, this court may direct the parties to engage in an early neutral

		evaluation, a settlement conference, or another alternative dispute resolution proceeding. By Judge Philip A. Brimmer on 3/14/17. Text Only Entry (pabsec) (Entered: 03/14/2017)
03/17/2017	12	ORDER SETTING RULE 16(b) SCHEDULING CONFERENCE by Magistrate Judge Nina Y. Wang on 3/17/17. A Scheduling Conference is set for 4/20/2017 10:00 AM in Courtroom C204 before Magistrate Judge Nina Y. Wang. The parties shall submit their proposed scheduling order, including a copy of the proposed order in Word format sent via email to Wang_Chambers@cod.uscourts.gov, seven days prior to the Scheduling Conference. (bwilk,) (Entered: 03/17/2017)
04/13/2017	13	Proposed Scheduling Order by Defendant Home Depot U.S.A., Inc.. (Smith, Arthur) (Entered: 04/13/2017)
04/20/2017	14	COURTROOM MINUTES/MINUTE ORDER for Scheduling Conference held on 4/20/2017 before Magistrate Judge Nina Y. Wang. Plaintiff shall supplement the Scheduling Order with a good faith estimate of the computation of damages on or before 4/27/2017. A proposed protective order is due on or before 4/27/2017. Discovery due 10/20/2017. Rule 702 Motions due 10/20/2017. Dispositive motions due 11/17/2017. A Final Pretrial Conference is set for 2/22/2018, at 1:00PM before Magistrate Judge Nina Y. Wang in Courtroom C 204. The parties shall include a courtesy copy of the proposed order in a Word format sent by email to Wang_Chambers@cod.uscourts.gov, seven days prior to the conference. FTR: Courtroom C-204. (bwilk,) (Entered: 04/20/2017)
04/20/2017	15	SCHEDULING ORDER entered by Magistrate Judge Nina Y. Wang. (bwilk,) (Entered: 04/20/2017)
04/27/2017	16	STATEMENT <i>Computation of Damages</i> by Plaintiff Sean Seeley. (Babich, William) (Entered: 04/27/2017)
04/27/2017	17	MOTION for Protective Order by Defendant Home Depot U.S.A., Inc.. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Proposed Order (PDF Only))(Smith, Arthur) (Entered: 04/27/2017)
04/27/2017	18	MEMORANDUM regarding 17 MOTION for Protective Order filed by Home Depot U.S.A., Inc. Motion referred to Magistrate Judge Nina Y. Wang by Judge Philip A. Brimmer on 4/27/17. Text Only Entry (pabsec) (Entered: 04/27/2017)
04/27/2017	19	Joint MOTION for Extension of Time to <i>File Stipulated Protective Order</i> by Defendant Home Depot U.S.A., Inc.. (Attachments: # 1 Proposed Order (PDF Only))(Smith, Arthur) (Entered: 04/27/2017)
04/27/2017	20	MEMORANDUM regarding 19 Joint MOTION for Extension of Time to <i>File Stipulated Protective Order</i> filed by Home Depot U.S.A., Inc. Motion referred to Magistrate Judge Nina Y. Wang by Judge Philip A. Brimmer on 4/27/17. Text Only Entry (pabsec) (Entered: 04/27/2017)
04/28/2017	21	ORDER finding as moot 17 Motion for Protective Order and granting 19 Motion for Extension of Time to File Protective Order. The deadline by which to file a proposed protective order is extended up to and including 5/3/2017. The court notes that the 19 Motion does not indicate that counsel contemporaneously served it on their clients, as required by Local Rule 6.1(c). Failure to follow the Local Rules in the future may result in the court striking or denying the motion without substantive consideration. By Magistrate Judge Nina Y. Wang on 4/28/2017. Text Only Entry (nywlc1) (Entered: 04/28/2017)
05/03/2017	22	MOTION for Protective Order by Defendant Home Depot U.S.A., Inc.. (Attachments: # 1 Stipulated Protective Order)(Smith, Arthur) (Entered: 05/03/2017)

05/03/2017	23	MEMORANDUM regarding 22 MOTION for Protective Order filed by Home Depot U.S.A., Inc. Motion referred to Magistrate Judge Nina Y. Wang by Judge Philip A. Brimmer on 5/3/17. Text Only Entry (pabsec) (Entered: 05/03/2017)
05/03/2017	24	STIPULATED PROTECTIVE ORDER entered by Magistrate Judge Nina Y. Wang on 5/3/17. (bwilk,) (Entered: 05/03/2017)
01/26/2018	25	MINUTE ORDER by Magistrate Judge Nina Y. Wang on 1/26/2018. The Final Pretrial Conference set for February 22, 2018 is VACATED and RESET to 2/28/2018 10:00 AM in Courtroom C204 before Magistrate Judge Nina Y. Wang. (bwilk,) (Entered: 01/26/2018)
02/15/2018	26	MOTION to Exclude <i>Plaintiff's Treating Physicians' Expert Opinion Testimony and Brief in Support Thereof</i> by Defendant Home Depot U.S.A., Inc.. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D, # 5 Proposed Order (PDF Only))(Smith, Arthur) (Entered: 02/15/2018)
02/21/2018	27	First MOTION in Limine by Defendant Home Depot U.S.A., Inc.. (Attachments: # 1 Proposed Order (PDF Only))(Smith, Arthur) (Entered: 02/21/2018)
02/21/2018	28	Second MOTION in Limine by Defendant Home Depot U.S.A., Inc.. (Attachments: # 1 Proposed Order (PDF Only))(Smith, Arthur) (Entered: 02/21/2018)
02/21/2018	29	Exhibit List by Defendant Home Depot U.S.A., Inc.. (Smith, Arthur) (Entered: 02/21/2018)
02/21/2018	30	Witness List by Defendant Home Depot U.S.A., Inc.. (Smith, Arthur) (Entered: 02/21/2018)
02/21/2018	31	Proposed Pretrial Order by Defendant Home Depot U.S.A., Inc.. (Smith, Arthur) (Entered: 02/21/2018)
02/21/2018	32	MOTION to Exclude <i>the Opinion Testimony of John Papilion, M.D.</i> by Defendant Home Depot U.S.A., Inc.. (Attachments: # 1 Exhibit Exh. A, # 2 Exhibit Exh. B, # 3 Exhibit Exh. C, # 4 Exhibit Exh. D, # 5 Proposed Order (PDF Only) Proposed Order)(Smith, Arthur) (Entered: 02/21/2018)
02/21/2018	33	Proposed Jury Instructions by Defendant Home Depot U.S.A., Inc.. (Smith, Arthur) (Entered: 02/21/2018)
02/21/2018	34	Proposed Verdict Form by Defendant Home Depot U.S.A., Inc.. (Smith, Arthur) (Entered: 02/21/2018)
02/21/2018	35	Proposed Voir Dire by Defendant Home Depot U.S.A., Inc.. (Smith, Arthur) (Entered: 02/21/2018)
02/27/2018	36	Unopposed MOTION for Leave to Appear <i>Via Telephone At Final Pretrial Conference</i> by Defendant Home Depot U.S.A., Inc.. (Smith, Arthur) (Entered: 02/27/2018)
02/27/2018	37	MEMORANDUM regarding 36 Unopposed MOTION for Leave to Appear <i>Via Telephone At Final Pretrial Conference</i> filed by Home Depot U.S.A., Inc. Motion referred to Magistrate Judge Nina Y. Wang by Judge Philip A. Brimmer on 2/27/18. Text Only Entry (pabsec) (Entered: 02/27/2018)
02/27/2018	38	ORDER granting 36 Motion for Leave to Appear. Mr. Smith may appear by telephone for the Final Pretrial Conference by contacting chambers at 303.335.2600 at the designated time. By Magistrate Judge Nina Y. Wang on 2/27/18. Text Only Entry (nywlc1,) (Entered: 02/27/2018)

02/28/2018	39	COURTROOM MINUTES/MINUTE ORDER for Final Pretrial Conference held on 2/28/2018 before Magistrate Judge Nina Y. Wang. On or before 3/7/2018, parties shall file a formal stipulation of all depositions completed past the discovery cut-off of 10/20/2017. Copies of Plaintiff's exhibit list shall be supplemented with Bates numbers on or before 3/7/2018. FTR: Courtroom C-204. (bwilk,) (Entered: 02/28/2018)
02/28/2018	40	FINAL PRETRIAL ORDER entered by Magistrate Judge Nina Y. Wang on 2/28/2018. (bwilk,) (Entered: 02/28/2018)
03/01/2018	41	ORDER Setting Case for Trial by Judge Philip A. Brimmer on 03/01/2018. A four-day Jury Trial set for 10/15/2018 08:00 AM in Courtroom A 701 before Judge Philip A. Brimmer. Trial Preparation Conference set for 10/5/2018 at 02:30 PM in Courtroom A 701 before Judge Philip A. Brimmer. All motions to exclude expert testimony must be filed sixty days before the trial preparation conference. Fourteen days before the trial preparation conference, counsel and any pro se party shall submit proposed jury instructions and verdict forms. The parties shall submit their instructions and verdict forms both via CM/ECF and by electronic mail to brimmer_chambers@cod.uscourts.gov in Word Perfect format (Word Perfect 12 or a later version) or Word format. Seven days before the trial preparation conference, the parties shall file via CM/ECF (1) their proposed voir dire questions; (2) their witness lists; and (3) their exhibit lists. (sphil,) (Entered: 03/01/2018)
03/07/2018	42	Exhibit List <i>Supplemental Pretrial Exhibit List</i> by Plaintiff Sean Seeley. (Babich, William) (Entered: 03/07/2018)
03/07/2018	43	Unopposed MOTION for Discovery <i>Motion to Extend Discovery</i> by Plaintiff Sean Seeley. (Babich, William) (Entered: 03/07/2018)
03/07/2018	44	RESPONSE to 26 MOTION to Exclude <i>Plaintiff's Treating Physicians' Expert Opinion Testimony and Brief in Support Thereof</i> filed by Plaintiff Sean Seeley. (Attachments: # 1 Exhibit, # 2 Exhibit, # 3 Exhibit, # 4 Exhibit, # 5 Exhibit)(Babich, William) (Entered: 03/07/2018)
03/07/2018	45	MEMORANDUM regarding 43 Unopposed MOTION to Extend Discovery filed by Sean Seeley. Motion referred to Magistrate Judge Nina Y. Wang by Judge Philip A. Brimmer on 3/7/18. Text Only Entry (pabsec) (Entered: 03/07/2018)
03/07/2018	46	ADVISORY NOTICE OF NONCOMPLIANCE WITH COURT RULES/PROCEDURES: re: 43 Unopposed MOTION for Discovery <i>Motion to Extend Discovery</i> , 44 Response to Motion, filed by attorney Bryan D. Doran . The s/signature did not match the filers name on the account for which the login and password are registered. DO NOT REFILE THE DOCUMENT. Action to take - future documents must be filed pursuant to D.C.COLO.LCivR 5.1(a) and 4.3(c) of the Electronic Case Filing Procedures (Civil cases).(Text Only Entry). (sphil,) (Entered: 03/08/2018)
03/08/2018	47	ORDER granting 43 Motion for Discovery. The discovery deadline is extended to 4/9/2018, for the purpose of taking the deposition of Andrea Knutson. By Magistrate Judge Nina Y. Wang on 3/8/2018. Text Only Entry (nywlc1,) (Entered: 03/08/2018)
03/14/2018	48	RESPONSE to 32 MOTION to Exclude <i>the Opinion Testimony of John Papilion, M.D.</i> filed by Plaintiff Sean Seeley. (Attachments: # 1 Exhibit Declaration of Dr. John Papilion, MD, # 2 Exhibit Dr. Jeffrey Arthur Medical Note, # 3 Exhibit Dr. Kathryn Polovitz Medical Note, # 4 Exhibit Dr. Alexander Zimmer Medical Note)(Doran, Bryan) (Entered: 03/14/2018)
03/21/2018	49	REPLY to Response to 26 MOTION to Exclude <i>Plaintiff's Treating Physicians' Expert Opinion Testimony and Brief in Support Thereof</i> filed by Defendant Home Depot U.S.A.,

		Inc.. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C)(Smith, Arthur) (Entered: 03/21/2018)
04/23/2018	50	MINUTE ORDER: a Telephonic Discovery Dispute Conference is set for 5/2/2018 02:00 PM in Courtroom C204 before Magistrate Judge Nina Y. Wang. Counsel shall initiate a phone call between themselves prior to calling chambers at (303) 335-2600 at the designated time. By Magistrate Judge Nina Y. Wang on 4/23/2018. (nywlc1,) (Entered: 04/23/2018)
05/01/2018	51	MINUTE ORDER: Per the Parties' request, the Telephonic Discovery Dispute Conference set for 5/2/2018 is VACATED and RESET for 5/10/2018 03:30 PM in Courtroom C204 before Magistrate Judge Nina Y. Wang. Counsel shall call chambers on one telephone line at (303) 335-2600 at the designated time. Furthermore, the joint discovery dispute chart and any written submissions, as contemplated by 50 Minute Order, shall be sent to chambers on or before 5:00 PM 5/8/2018. By Magistrate Judge Nina Y. Wang on 5/1/2018. Text Only Entry (nywlc2,) (Entered: 05/01/2018)
05/10/2018	52	MINUTE ENTRY for proceedings held before Magistrate Judge Nina Y. Wang: Telephonic Discovery Hearing held on 5/10/2018. Plaintiff shall produce documents related to Interrogatory No. 11, two business days from receiving the records. Parties shall file a Status Report by May 31, 2018 if records are not turned over. The Court finds that discovery closed on October 20, 2017. In addition, there was already a Final Pretrial Conference held in this case and a Final Pretrial Order entered that represented that discovery was completed. Trial has already been set. Defendant can file a Motion to Compel, however the Court anticipates that any Motion to Compel will be DENIED as untimely. Hearing concluded. FTR: NYW-C-204. (nmarb,) (Entered: 05/11/2018)
07/16/2018	53	MINUTE ORDER. Plaintiff shall file any response to Defendant Home Depot U.S.A., Inc.'s First and Second Motions in Limine 27 and 28 on or before July 30, 2018. By Judge Philip A. Brimmer on 7/16/18. Text Only Entry (pabsec) (Entered: 07/16/2018)
07/30/2018	54	RESPONSE to 27 First MOTION in Limine filed by Plaintiff Sean Seeley. (Doran, Bryan) (Entered: 07/30/2018)
07/30/2018	55	RESPONSE to 28 Second MOTION in Limine filed by Plaintiff Sean Seeley. (Attachments: # 1 Affidavit Declaration of Bryan D. Doran)(Doran, Bryan) (Entered: 07/30/2018)
07/30/2018	56	ADVISORY NOTICE OF NONCOMPLIANCE WITH COURT RULES/PROCEDURES: re: 54 Response to Motion filed by attorney Bryan D. Doran . DO NOT REFILE THE DOCUMENT. Action to take - counsel must submit a change of contact request through the Attorney Services Portal Account pursuant to D.C.COLO.LAttyR 5(c) and 3.5 of the Electronic Case Filing Procedures (Civil cases). (Text Only Entry). (sphil) (Entered: 07/30/2018)
08/02/2018	57	MINUTE ORDER by Judge Philip A. Brimmer on 08/02/2018, 27 Motion in Limine; and 28 Motion in Limine. ORDERED that Defendant Home Depot U.S.A., Inc.'s First Motion in Limine [Docket No. 27] and Defendant Home Depot U.S.A., Inc.'s Second Motion in Limine [Docket No. 28] are DENIED . (sphil,) (Entered: 08/02/2018)
08/29/2018	58	NOTICE of Change of Address/Contact Information <i>and Association of Counsel</i> by Bryan Daniel Doran (Doran, Bryan) (Entered: 08/29/2018)
08/29/2018	59	ADVISORY NOTICE OF NONCOMPLIANCE WITH COURT RULES/PROCEDURES: re: 58 Notice of Change of Address/Contact Information filed by attorney Bryan D. Doran . Attorney or pro se has used an incorrect signature format in violation of D.C.COLO.LCivR 5.1(a) and 4.3(a) of the Electronic Case Filing Procedures (Civil cases). DO NOT REFILE THE DOCUMENT . In the future, the filer must affix

		an electronic s/signature and s/ followed by a typed, not an inked, signature to all future documents.(Text Only Entry), ADVISORY NOTICE OF NONCOMPLIANCE WITH COURT RULES/PROCEDURES: re: 58 Notice of Change of Address/Contact Information filed by attorney Bryan D. Doran . The document was scanned and not converted directly to portable document format (PDF). DO NOT REFILE THE DOCUMENT. Action to take - future documents must be filed pursuant to D.C.COLO.LCivR 5.1(a) and 1.3(f) of the Electronic Case Filing Procedures (Civil cases). (Text Only Entry). (sphil,) (Entered: 08/30/2018)
09/07/2018	60	ORDER. Defendant Home Depot U.S.A., Inc.'s Motion to Exclude Plaintiff's Treating Physicians' Expert Opinion Testimony 26 is DENIED. Defendant Home Depot U.S.A., Inc.'s Motion to Exclude the Testimony of John D. Papilion, M.D. 32 is DENIED. Within seven days of this order, plaintiff shall provide defendant with a supplemental Rule 26(a) (2) disclosure containing more detailed information regarding the factual basis for Dr. Arthur's opinions. By Judge Philip A. Brimmer on 9/6/18. (pabsec) (Entered: 09/07/2018)
09/21/2018	61	Proposed Jury Instructions by Defendant Home Depot U.S.A., Inc.. (Smith, Arthur) (Entered: 09/21/2018)
09/21/2018	62	Proposed Jury Instructions - <i>Agreed</i> by Defendant Home Depot U.S.A., Inc.. (Smith, Arthur) (Entered: 09/21/2018)
09/21/2018	63	Proposed Verdict Form by Defendant Home Depot U.S.A., Inc.. (Smith, Arthur) (Entered: 09/21/2018)
09/21/2018	64	MOTION in Limine by Plaintiff Sean Seeley. (Doran, Bryan) (Entered: 09/21/2018)
09/21/2018	65	Proposed Jury Instructions by Plaintiff Sean Seeley. (Doran, Bryan) (Entered: 09/21/2018)
09/21/2018	66	Proposed Verdict Form by Plaintiff Sean Seeley. (Doran, Bryan) (Entered: 09/21/2018)
09/21/2018	67	ADVISORY NOTICE OF NONCOMPLIANCE WITH COURT RULES/PROCEDURES: re: 66 Proposed Verdict Form, 64 MOTION in Limine , 65 Proposed Jury Instructions filed by attorney Bryan D. Doran . DO NOT REFILE THE DOCUMENT. Action to take - counsel must submit a change of contact request through the Attorney Services Portal Account pursuant to D.C.COLO.LAttyR 5(c) and 3.5 of the Electronic Case Filing Procedures (Civil cases).(Text Only Entry). (sphil,) (Entered: 09/24/2018)
09/28/2018	68	Exhibit List by Plaintiff Sean Seeley. (Doran, Bryan) (Entered: 09/28/2018)
09/28/2018	69	Proposed Voir Dire <i>Questions</i> by Plaintiff Sean Seeley. (Doran, Bryan) (Entered: 09/28/2018)
09/28/2018	70	Witness List by Plaintiff Sean Seeley. (Doran, Bryan) (Entered: 09/28/2018)
10/01/2018	71	MINUTE ORDER. Defendant shall respond to plaintiff's Motions in Limine to Exclude Collateral Source Evidence and Unsupported Medical Opinion by Counsel 64 on or before 5:00 p.m. on Wednesday, October 3, 2018. By Judge Philip A. Brimmer on 10/1/18. Text Only Entry (pabsec) (Entered: 10/01/2018)
10/01/2018	72	NOTICE - <i>Estimated Cross-Examination Times</i> by Defendant Home Depot U.S.A., Inc. (Smith, Arthur) (Entered: 10/01/2018)
10/02/2018	73	MINUTE ORDER. Any objections to or comments about the attached proposed introductory jury instructions shall be filed on or before October 10, 2018. By Judge Philip A. Brimmer on 10/2/18. (pabsec) (Entered: 10/02/2018)
10/02/2018	74	TRIAL BRIEF by Plaintiff Sean Seeley. (Doran, Bryan) (Entered: 10/02/2018)

10/03/2018	75	TRIAL BRIEF (<i>SUPPLEMENTAL</i>) by Plaintiff Sean Seeley. (Doran, Bryan) (Entered: 10/03/2018)
10/03/2018	76	RESPONSE to 64 MOTION in Limine to <i>Exclude Collateral Source Evidence and Unsupported Medical Opinion by Counsel</i> filed by Defendant Home Depot U.S.A., Inc.. (Smith, Arthur) (Entered: 10/03/2018)
10/04/2018	77	Unopposed MOTION for Leave to Appear <i>Telephonically at Trial Preparation Conference</i> by Defendant Home Depot U.S.A., Inc.. (Smith, Arthur) (Entered: 10/04/2018)
10/04/2018	78	MINUTE ORDER denying 77 Defendant Home Depot, U.S.A., Inc.'s Unopposed Motion to Appear via Telephone at Trial Preparation Conference. By Judge Philip A. Brimmer on 10/4/18. (pabsec) (Entered: 10/04/2018)
10/04/2018	79	MOTION for Leave to <i>TESTIFY BY VIDEO LINK PURSUANT TO RULE 43(a)</i> by Plaintiff Sean Seeley. (Doran, Bryan) (Entered: 10/04/2018)
10/05/2018	80	RESPONSE to 79 MOTION for Leave to <i>TESTIFY BY VIDEO LINK PURSUANT TO RULE 43(a)</i> filed by Defendant Home Depot U.S.A., Inc.. (Attachments: # 1 Exhibit A) (Smith, Arthur) (Entered: 10/05/2018)
10/05/2018	81	RESPONSE to 64 MOTION in Limine to <i>Exclude Collateral Source Evidence and Unsupported Medical Opinion by Counsel</i> filed by Defendant Home Depot U.S.A., Inc.. (Smith, Arthur) (Entered: 10/05/2018)
10/05/2018	82	Exhibit List - <i>Supplemental</i> by Defendant Home Depot U.S.A., Inc.. (Smith, Arthur) (Entered: 10/05/2018)
10/05/2018	83	COURTROOM MINUTES for Trial Preparation Conference held on 10/5/2018 before Judge Philip A. Brimmer. ORDERED: Plaintiff's Motion In Limine to Exclude Collateral Source Evidence and Unsupported Medical Opinion by Counsel 64 is GRANTED as to the collateral source evidence and DENIED in all other respects. Plaintiff's Motion for Leave to Permit the Testimony of Skip Guarini in Open Court by Contemporaneous Transmission from a Different Location 79 is DENIED. The parties shall file a joint statement of the case on or before October 11, 2018. Plaintiff shall file a joint alphabetized witness list, as discussed on or before October 11, 2018. Witnesses will be sequestered. The parties are permitted to file motions in limine, as discussed, on or before October 9, 2018 at noon. A response shall be filed on or before October 11, 2018 at noon. Court Reporter: Janet Coppock. (sgrim) (Entered: 10/05/2018)
10/09/2018	84	Third MOTION in Limine and <i>Brief in Support</i> by Defendant Home Depot U.S.A., Inc.. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C)(Smith, Arthur) (Entered: 10/09/2018)
10/10/2018	85	Exhibit List - <i>Amended</i> by Defendant Home Depot U.S.A., Inc.. (Smith, Arthur) (Entered: 10/10/2018)
10/10/2018	86	Exhibit List <i>Supplemental</i> by Plaintiff Sean Seeley. (Doran, Bryan) (Entered: 10/10/2018)
10/11/2018	87	RESPONSE to 84 Third MOTION in Limine and <i>Brief in Support</i> filed by Plaintiff Sean Seeley. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D, # 5 Exhibit E)(Doran, Bryan) (Entered: 10/11/2018)
10/11/2018	88	Exhibit List <i>Second Supplemental</i> by Plaintiff Sean Seeley. (Doran, Bryan) (Entered: 10/11/2018)
10/11/2018	89	ORDER denying 84 Defendant Home Depot, U.S.A., Inc.'s Third Motion in Limine. By Judge Philip A. Brimmer on 10/11/18. (pabsec) (Entered: 10/11/2018)

10/11/2018	90	Witness List (<i>Joint</i>) by Plaintiff Sean Seeley. (Doran, Bryan) (Entered: 10/11/2018)
10/11/2018	91	NOTICE of Proposed Joint Statement by Plaintiff Sean Seeley (Doran, Bryan) (Entered: 10/11/2018)
10/14/2018	92	MOTION to Exclude <i>the Opinion Testimony of Dr. Jeffrey Arthur</i> by Defendant Home Depot U.S.A., Inc.. (Attachments: # 1 Exhibit Exhibit A, # 2 Proposed Order (PDF Only) Proposed Order)(Smith, Arthur) (Entered: 10/14/2018)
10/15/2018	93	RESPONSE to 92 MOTION to Exclude <i>the Opinion Testimony of Dr. Jeffrey Arthur</i> filed by Plaintiff Sean Seeley. (Attachments: # 1 Exhibit A, # 2 Exhibit B)(Doran, Bryan) (Entered: 10/15/2018)
10/15/2018	94	NOTICE of Proposed Joint Statement by Plaintiff Sean Seeley (Doran, Bryan) (Entered: 10/15/2018)
10/15/2018	96	COURTROOM MINUTES for Jury Trial - Day 1 held on 10/15/2018 before Judge Philip A. Brimmer. ORDERED: Defendant Home Depot U.S.A., Inc.'s Motion for Reconsideration of Order Denying Motion to Exclude Plaintiff's Treating Physician's (Dr. Jeffrey Arthur) Expert Opinion Testimony, Based on Plaintiff's Supplemental Disclosure Required by Court Order [Docket No. 60] 92 is GRANTED IN PART. Dr. Arthur in only permitted to testify about numbness, as discussed. Exhibit photographs related to the Home Depot cart are excluded, as discussed. Trial continued. Court Reporter: Janet Coppock. (sgrim) (Entered: 10/16/2018)
10/16/2018	95	MOTION for Trial <i>Use of Deposition Testimony of Nadia Solsbery</i> by Defendant Home Depot U.S.A., Inc.. (Attachments: # 1 Exhibit Exh. A, # 2 Exhibit Exh. B, # 3 Proposed Order (PDF Only) Proposed Order)(Smith, Arthur) (Entered: 10/16/2018)
10/16/2018	97	NOTICE of Joint Designation of Solsbery Deposition by Plaintiff Sean Seeley (Attachments: # 1 Appendix A)(Doran, Bryan) (Entered: 10/16/2018)
10/16/2018	99	COURTROOM MINUTES for Jury Trial - Day 2 held on 10/16/2018 before Judge Philip A. Brimmer. ORDERED: Defendant Home Depot U.S.A., Inc.'s Motion to Call Witness Nadia Solsbery Via Deposition Testimony 95 is HELD IN ABEYANCE. Trial continued. Court Reporter: Janet Coppock. (sgrim) (Entered: 10/17/2018)
10/17/2018	98	ORDER on Objections to Joint Designation of Deposition Testimony of Nadia Solsbery. By Judge Philip A. Brimmer on 10/17/18. (pabsec) (Entered: 10/17/2018)
10/17/2018	100	COURTROOM MINUTES for Jury Trial - Day 3 held on 10/17/2018 before Judge Philip A. Brimmer. ORDERED: Defendant's oral motion for judgment as a matter of law pursuant to Rule 50 is DENIED, as stated on record. Trial continued. Court Reporter: Janet Coppock. (Attachments: # 1 Defendant's Tendered/Rejected Jury Instruction) (sgrim) (Entered: 10/18/2018)
10/18/2018	101	COURTROOM MINUTES for Jury Trial - Day 4 completed on 10/18/2018 before Judge Philip A. Brimmer. JURY VERDICT. Court Reporter: Janet Coppock. (sgrim) (Entered: 10/18/2018)
10/18/2018	102	Jury Instructions. (sgrim) (Entered: 10/18/2018)
10/18/2018	103	Jury Notes - Unredacted - Level 3 - Viewable by Court Only. (sgrim) (Entered: 10/18/2018)
10/18/2018	104	Jury Notes. (sgrim) (Entered: 10/18/2018)
10/18/2018	105	Jury Verdict - Unredacted - Level 3 - Viewable by Court Only. (sgrim) (Entered: 10/18/2018)

10/18/2018	106	JURY VERDICT. (sgrim) (Entered: 10/18/2018)
10/18/2018	107	ORDER. It is ORDERED that at the conclusion of the trial counsel for the parties shall retain custody of their respective exhibits and depositions until such time as all need for the exhibits and depositions has terminated and the time to appeal has expired or all appellate proceedings have been terminated plus sixty days, by Judge Philip A. Brimmer on 10/18/18. Text Only Entry (sgrim) (Entered: 10/18/2018)
10/19/2018	108	MINUTE ORDER. Defendant Home Depot U.S.A., Inc.'s Motion to Call Witness Nadia Solsberg Via Deposition Testimony 95 is denied as moot. By Judge Philip A. Brimmer on 10/19/18. Text Only Entry (pabsec) (Entered: 10/19/2018)
10/19/2018	109	MINUTE ORDER by Judge Philip A. Brimmer on 10/19/2018. ORDERED that defendants John Doe I and John Doe II were voluntarily dismissed from this case by the entry of the final pretrial order on February 28, 2018 (sphil,) (Entered: 10/19/2018)
10/22/2018	110	FINAL JUDGMENT re: 106 Jury Verdict, by Clerk on 10/22/18. (sgrim) (Entered: 10/22/2018)

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